



ARLINGTON COUNTY, VIRGINIA

County Board Agenda Item
Meeting of February 24, 2024

DATE: February 12, 2024

SUBJECT: Establishing Ranked Choice Voting As The Election Method For Arlington County's County Board 2024 General Election

RECOMMENDATION:

Adopt the attached uncodified ordinance to establish Ranked Choice Voting as the election method for the November 2024 County Board general election, which is currently a one seat election. This ordinance would not apply in the event that this election becomes a two-seat election.

ISSUES: The County Board has incrementally expanded use of Ranked Choice Voting ("RCV") as the election method in its elections since December 2022. RCV was first piloted in the June 2023 County Board primary and then adopted by the County Board in December of 2023 as the method for all future County Board primary elections.

The Board is now considering pilot use of RCV in the 2024 General Election. State law provides that any changes to an election must occur at least 90 days before such an election. A draft resolution has been prepared should the Board decide to adopt RCV as the election method for County Board primary elections and is available in Appendix A.

SUMMARY: The County Board will determine if RCV is to be used as the method of election in the upcoming 2024 County Board General Election. This ordinance is meant to apply to the expected upcoming one seat County Board general election. This ordinance would not apply in the event that this election becomes a two-seat election.

BACKGROUND: In July 2020, the Virginia General Assembly passed a bill to amend the Code of Virginia §§ 15.2-705.1 and 24.2-673.1 to allow localities to implement RCV in elections of members of a county board under the County Manager plan of government, a county board of supervisors or a city council. In fall 2021, the Arlington Electoral Board conducted a public engagement with Q&A and a "mock election" and held a joint work session with the County Board to discuss this voting method.

After reviewing feedback from public engagement on the topic in fall 2022, the County Board adopted the pilot use of RCV as the election method for the June 2023 County Board primary

County Manager:

County Attorney:

Staff: David R. Barrera, CBO

MNC

election. The Board collected public feedback on using RCV during and after the 2023 primary to understand voter and resident experiences and opinions on this new voting method. In December 2023, the Board adopted RCV as the election method in all County Board primary elections.

DISCUSSION: Similar to the pilot use of RCV in the 2023 County Board primary election, the goals of incrementally expanding this election method to just the 2024 General Election are to:

- Introduce this voting method in an election that includes more of the voting population;
- Monitor its implementation; and
- Gauge public reception.

While feedback from 2023's use of ranked choice voting was generally positive, it was clear that more time was needed to socialize, explain, and discuss the use of RCV as an election method, particularly when there are two or more seats up. Piloting its use in the 2024 General Election will allow the Board to review its reception and determine whether to expand its use to future general elections.

Generally speaking, RCV is an election method that allows voters to rank candidates in order of preference. Under Virginia state law, in years where only one seat is open, like the upcoming 2024 County Board general election, a threshold of 50 percent and 1 vote is used to determine a winner.

To adopt the use of RCV to the general election, the County Board must formally adopt its use at least 90 days before the election. A draft resolution has been prepared should the Board decide to adopt RCV as the election method for all County Board primary elections and is available in the appendix.

PUBLIC ENGAGEMENT: *Level of Engagement:* Communicate & Consult

Outreach Methods: The Arlington Electoral Board began its discussions after HB506, the state-enabling legislation, took effect in July 2021. At its public meetings, the Electoral Board reviewed analyses of [Ranked Choice Voting and its application in Arlington](#).

In August 2021, the Arlington Office of Elections held a community event at the Bozman Government Center to educate and inform about RCV. Participants completed a model RCV ballot in a mock election facilitated by Elections staff and volunteers to select Arlington's favorite farmer's market, followed by a town-hall style Q&A about the implementation of RCV.

In October 2021, the County Board held a work session with the Electoral Board and Registrar on the RCV. This [work session](#) allowed County Board members to learn about RCV, its impacts on voters, and the specifics of tabulation. The conversation also surfaced related issues, such as independent local elections of School Boards (not eligible for RCV under state code).

Beginning in the fall of 2022, the County Board invited public input on the pilot use of RCV in the 2023 County Board primary election. The Board received more than 780 survey responses. Seventy-five percent of respondents favored implementing RCV, and a zip code analysis

indicated that feedback from each region of the County was favorable, with the lowest favorability in 22207, at 63%, and the highest in 22203, at 88%.

At its December 2022 Regular meeting, the Board adopted RCV as the election method in the 2023 County Board primary election. In the following six months, the County Office of Elections completed 20 RCV outreach events in the County, provided 16 election office training classes on the tabulation process, and provided training for candidates and their campaigns.

Recent Community Feedback: In mid-June 2023, the County Board invited the public a second time to provide feedback on their opinions on and experiences with RCV in the primary election using a feedback form that closed on July 5, 2023. The feedback form questions and report results can be viewed in the Appendix of this report.

The Board received 2450 participant responses, with 2109 comments. Of those that provided demographic information (n ranged from 1308 to 1368), 54% were 60+ in age, 89% were white, 83% owned their home, and 63% lived in a Single-family, detached house.

The majority of responses were positive and supported some future implementation of RCV. When asked to rate their experience with RCV, 57% of respondents indicated “positive” or “exceptional,” while 29% and 13% indicated “negative” and “fair,” respectively. 47% of respondents also believed that RCV should be implemented in every election, while 7% stated it should only be implemented in primaries. 32% believed that RCV should not be implemented at all, and 12% reported that they didn’t know enough to take a position.

When asked about their familiarity with RCV before they voted, 56% stated they heard about it and understood it, 22% stated they were familiar, 19% said they heard about it but didn’t understand it, and 4% said they never heard about RCV. Respondents were also asked to select all the different ways they heard about RCV, and the top 5 were “News” (74%), Advocacy or Political Organization (40%), Friends or Family (30%), the County Website (29%) and the Elections Office Education Campaign (27%).

FISCAL IMPACT: The County's current voting machines supported RCV with ranking up to three choices in the 2023 June County Board primary. If adopted as the method of election for the 2024 County Board general elections, these same machines will be used. The Adopted Fiscal Year (FY) 2023-2024 Capital Improvement Plan (CIP) provides funding for the replacement of the current voting machines in FY 2025 at a cost of \$2,000,000.

Additionally, approving the use of RCV in the 2024 General Election will likely require additional funding due to the need for a 3-page or 2-card ballot. Virginia Code section 24.2-116 (D) requires that all offices on the ballot appear before any questions presented to voters. Ballot standards adopted by the State Board of Elections also require that offices using RCV appear on their own side of a ballot. This additional page for each ballot will result in an estimated additional cost of \$60,000 and, if approved, will be included as part of the FY 2025 adopted budget.

APPENDICE A

ENACTMENT OF AN UNCODIFIED ORDINANCE TO ESTABLISH RANKED CHOICE VOTING IN THE 2024 COUNTY BOARD GENERAL ELECTION.

BE IT ORDAINED by the County Board of Arlington, Virginia, that the following uncoded ordinance is hereby enacted, and ranked choice voting is hereby adopted as the election method in the 2024 County Board General Election.

WHEREAS, ranked choice voting (RCV) means the method of casting and tabulating votes in which voters rank candidates in order of preference, tabulation proceeds in sequential rounds in which last-place candidates are defeated and the candidates with the most votes in the final round are nominated; and

WHEREAS, in July 2020, the Virginia General Assembly amended the Code of Virginia (§§ 15.2-705.1 and 24.2-673.1) to allow localities to implement RCV in elections of members of a county board under the County Manager plan of government, a county board of supervisors or a city council, and the decision to conduct an election by ranked choice voting shall be made, in consultation with the local electoral board and general registrar, by a majority vote of the board of supervisors or city council that the office being elected serves; and

WHEREAS, the Electoral Board and Registrar of Arlington County, Virginia have engaged in educational efforts since 2021, including conducting a mock election using the application of RCV, a work session with the Arlington County Board to introduce and establish familiarity among stakeholders of the process of RCV, and numerous training sessions since the adoption of RCV as the election method for the June 2023 County Board primary election; and

WHEREAS, the use of RCV in the June 2023 primary elections for Arlington County Board allowed for the introduction of this new method to our community, and the Office of Office of Elections reported no technical difficulty in administering this election; and

WHEREAS, the County Board adopted the use of RCV in all County Board primary elections at its December 2023 meeting; and

WHEREAS, the County Board adopting the pilot use of RCV in the upcoming 2024 County Board general election would introduce this new method to more of the voting population, allowing the Board to monitor and gauge its reception to help decide in future implementation in general elections; and

WHEREAS, state law provides that any changes to an election must occur at least 90 days before such election and with the passage of this resolution Arlington County is compliant, and adoption of this resolution more than four months before the general election allows the Arlington County Registrar additional time to educate and engage the community on the election method;

WHEREAS, this ordinance is only meant to apply to the expected one-seat 2024 County Board general election. In the event that this general election becomes a two-seat election, this ordinance will not apply.

NOW, THEREFORE, BE IT ORDAINED, that the County Board of Arlington County, Virginia, hereby establishes RCV as the election method for any single-seat race for the 2024 County Board general election.

Adopted the 24th day of February 2024